

A “school district and its employees have a special relationship with the district’s pupils[.]” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 869.) However, a special relationship, alone, does not create liability for a school district because tort liability for governmental entities must be based on statute. (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 268.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815.) A public entity “is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).) A public employee “is liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code, § 820.) “Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.” (Gov. Code, § 815.2, subd. (b).) “In other words, ‘the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer (§ 815, subd. (b)).” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 868, citation omitted.)

Where, as here, it is alleged that a school district's employee sexually abused a pupil, the school district is not vicariously liable for the alleged abuser's conduct, "because such conduct is not within the scope of employment." "However, 'the same school district may be held liable if its supervisory employees were negligent in hiring and supervising the abusive teacher and that negligence resulted in the student's harm.'" (O.B. v. Los Angeles Unified School Dist. (2025) 113 Cal.App.5th 930, 937, citation omitted.)

Defendant SAUSD contends, even assuming for the sake of argument that it was negligent in detecting, preventing or reporting the alleged abuse, it is immune from liability under Education Code section 44808.

Education Code section 44808 provides, in relevant part, that:

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. (Ed. Code, § 44808.)

In other words, “section 44808 immunizes a school district from liability for off-campus harm to a student proximately caused by the district’s negligent acts unless the student was (or was supposed to be) under the district’s supervision or the district specifically assumed responsibility for the student. Put differently, a school district cannot be held liable for negligence that proximately causes off-campus harm when the student is no longer supposed to be under the district’s supervision.” (Vallejo City Unified School Dist. v. Superior Court (2025) 118 Cal.App.5th 139, 152.)

Here, the undisputed material facts (ROA 107) show:

- The first two instances of sexual abuse occurred during the summer of 2000, when Defendant Henry picked up Plaintiff from his house and they drove to Henry’s house. (UF nos. 1, 2).
- The third occasion of sexual contact occurred when Plaintiff called Defendant Henry to pick him up, and they went to Henry’s residence. (UF no. 4.)
- During Plaintiff’s senior year, he called Defendant Henry on “one or two occasions” and Henry picked Plaintiff up and took him to Henry’s home. (UF no. 6.)

Although Plaintiff claims there is a dispute as to facts 8, 9, and 10 (re: whether the alleged conduct occurred during transportation provided by Defendant SAUSD, or during school-sanctioned events when Plaintiff should have been supervised by SAUSD), the Court finds the evidence Plaintiff cites to does not support finding any genuine dispute as to these material facts. In sum, Defendant SAUSD has proffered evidence that

Plaintiff was not on school property, not utilizing District-provided transportation, and not at on off-campus, school-sponsored activity, when the alleged sexual abuse occurred. As such, Defendant has met its initial burden of showing that it is entitled to summary judgment on all claims against it, because it is entitled to immunity under Education Code section 44808.

The burden shifts to Plaintiff to show there is a triable issue of material fact. Plaintiff attempts to meet this showing by proffering evidence that Defendant SAUSD was on notice that Defendant Henry was spending time with certain students, due to a report being made by a district safety officer in or around 1993-1994 and, again, in the mid to late-1990s (i.e., about 7 years prior to Henry's abuse of Plaintiff). (ROA 107 [AMF nos. 6-14].) Plaintiff argues Defendant SAUSD is not immune under section 44808 for the "on-campus negligence" of supervisory personnel in failing to investigate or supervise Defendant Henry (or in retaining him), even if Plaintiff suffered an "off-campus injury." (ROA 109 [Opp'n at pp. 6-10.]

This argument is not persuasive, however, because multiple courts have rejected similar arguments based on a negligent hiring, supervision, or retention claim.

In *Mosley v. San Bernardino City Unified School Dist.*, the appellate court rejected the plaintiffs' theory that a school district was liable for the negligent hiring and supervision of a teacher who was driving a van (not during a school-sponsored activity) when a student fell out and hit her head. (*Mosley v. San Bernardino City Unified School Dist.* (2005) 134 Cal.App.4th 1260, 1262.) Although *Mosley* was not a sexual abuse case, *Mosley* reasoned (in dicta) that prior cases where sexual abuse plaintiffs had been permitted to proceed

under a theory of negligent hiring, supervision, or retention, the sexual abuse was alleged to have occurred “either at school or off school premises during an officially sanctioned school program.” (Id. at p. 1264.) In rejecting plaintiffs’ argument that the school knew or should have known of the teacher’s foreseeable risk of exposing student to harm, Mosley explained: “Third, and more importantly, Plaintiffs’ argument suggests that there is no action by a teacher for which a district would not be liable so long as it may be traced back to negligent hiring and supervision. We are unaware of any case law that extends such liability that far, nor are we inclined to do so.” (Id. at p. 1265.)

In *LeRoy v. Yarboi* (2021) 71 Cal.App.5th 737, the appellate court held that a school district was immune from liability for a student’s off-campus suicide, “while he was not and should not have been supervised by Respondents or any other [district] employee,” even assuming “they breached a duty they owed him.” (*LeRoy v. Yarboi* (2021) 71 Cal.App.5th 737, 744.) (This case is similar to *Vallejo City Unified School Dist. v. Superior Court* (2025) 118 Cal.App.5th 139.)

Lastly, where a school employee was alleged to have killed a student while the employee was babysitting the student during winter break, the immunity applied where there was no dispute that the student “died away from school property and when school was not in session” and that he did not die while the district was “transporting him to or from school or while he was participating in a school-sponsored activity.” (*Taylor v. Los Angeles Unified School Dist.* (2025) 112 Cal.App.5th 769, 774–775.) The plaintiff argued that the district was not immune from liability under section 44808, because “the negligence in hiring, supervising, or retaining [the teacher] occurred on

school property, and that negligence resulted in the off-campus harm to [the student].” (Id. at p. 775.) Citing Mosley, Taylor also rejected the plaintiff’s “expansive approach that would expose a school district to liability for any employee’s off-campus tort that could somehow be ‘traced back to negligent hiring and supervision,’” because such an interpretation would “run afoul of section 44808’s express purpose of limiting school district liability for harm that occurs to students when they are not on school property or engaged in school-sponsored or school-supervised activities.” (Id. at p. 776.)

Plaintiff’s reliance on C.A. v. William S. Hart Union High Sch. Dist. (2012) 53 Cal. 4th 861 (and its progeny) is misplaced, because they did not implicate the immunity under section 44808. In fact, Taylor expressly pointed out that the “negligent hiring liability” described in C.A. did not address the immunity under section 44808; and, that C.A. had “clearly stated its analysis was premised on the assumption that ‘no immunity provision applies.’” (Taylor, supra, 112 Cal.App.5th at p. 777.)

Likewise, Plaintiff’s reliance on Hoyem v. Manhattan Beach City Sch. Dist. (1978) 22 Cal.3d 508 and Perna v. Conejo Valley Unified School Dist. (1983) 143 Cal.App.3d 292, is misplaced. In Hoyem, the student suffered “an off-campus injury that occurred at a time when the school was supposed to be supervising the student.” Immunity under section 44808 does not apply, because it “withdraws immunity only when the student is or should be under the school’s direct supervision.” (Vallejo City Unified School Dist. v. Superior Court (2025) 118 Cal.App.5th 139, 151 [distinguishing Hoyem].) In Perna, the teacher was allegedly negligent in her dismissal, because she “kept the children after school to grade papers knowing that crossing guards would not be available and that